

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 10, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR: Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Ms. Broyles, Mr. Collins, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Mr. Brown and Mr. Pierson. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Allen, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #23(a) was removed from the Consent Agenda. Upon request by Mr. Valdez, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #22(d) was removed from the Consent Agenda. Mr. Valdez moved to approve remaining Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on September 26, 2011. Motion (per Consent Agenda) carried.

Mr. Valdez declared a conflict of interest (business interest) due to a voucher payable to Radio Station KYOY, and vacated Council Chambers. Mr. Allen moved to approve payment of vouchers as presented, seconded by Dr. Rinne. Upon inquiry, information was provided regarding a voucher payable to TDSI - The Design Studio, Inc. (services for design work for the proposed utility corridor for in-fill development in the downtown area.) Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated at 5618 Townsend Place and described as the north 170 feet of Tract 6, Briney Tracts, Laramie County, Wyoming (generally located at the southwest corner of Townsend Place and east Carlson Street). Jim Flesher, Planning Services Dept., reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from MR-1 Medium Density Residential Established and P Public Districts to PUD Planned Unit Development District for Lots 1 and 2, Block 1, and Lot 1, Block 2, Hospital Center, 1st Filing, City

of Cheyenne, Laramie County, Wyoming (located between E. 22nd and E. 25th Streets, east of Warren and west of Evans Avenues). Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present. (#3931)

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from A-2 County Agricultural District to HI Heavy Industrial District for a portion of Section 1, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming, also to be known as Lot 1, Block 1, GDC Subdivision (located south of Interstate 80, west of Campstool Road. Mayor Kaysen declared a conflict of interest (family financial interest); relinquished duties of the chair to Council President Rinne, and vacated Council Chambers. Edith Cook expressed concerns with the location of the new gas power plant and questioned whether alternative locations had been reviewed. Upon inquiry, Jason Hartman, Black Hills Corp., advised no other sites were proposed at this time. Ms. Ash moved to approve on third and final reading, seconded by Mr. Collins. Upon inquiry regarding concern with fire response coverage for the area, Mr. Hartman reported they are just beginning the conceptual design and would be willing to discuss the issue with the City. Ms. Cook's statements were referenced during comments encouraging members of the public to speak on items of concern to them at Council meetings. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mayor Kaysen returned to Council Chambers with Council President Rinne returning duties of the chair to Mayor Kaysen. (#3932)

Ordinance amending Sections 5.44.010, 5.44.020, 5.44.030, 5.44.040, 5.44.050 of Chapter 5.44, Contractors, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present. (#3933)

Ordinance amending Section 15.04.020(A), Building Code Board of Appeals, of Chapter 15.04, General Provisions, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming, relating to the removal of certain City officials as ex-officio members of the Building Code Board of Appeals. Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present. (#3934)

Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in portions of Sections 14 and 23, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (generally located between Interstate 25 and Clear Creek Parkway, south of West College Drive). James Perrott Macneil spoke in opposition to all new ordinances involving regulations, and expressed personal concerns with the proposed annexation and past annexation actions in the area. Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Upon inquiry concerning whether there have been any discussions with the developer regarding fire response coverage to the area, Brad Emmons, AVI, agent for the applicant, advised there have been some discussions but nothing specific at this time. Comment was made regarding communication if assistance by developers for under-served fire coverage areas were to become available in affiliation with preparation of the next budget. Motion carried. Voting "yes" -- all members of the governing body present.

Ordinance amending certain Chapters and Sections of Title 17, Zoning, of the Cheyenne City Code by Repealing and Re-enacting Section 17.80.080, Signs, of Chapter 17.80, P Public District -- referred to Public Services Committee (sponsor - Mr. Collins).

Resolution re-appropriating the Fiscal Year 2012 budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 and 16-4-113. Reporting for Finance Committee, Mr. Valdez moved to adopt, seconded by Mr. Spiker. Mr. Valdez moved to amend by substitute, seconded by Mr. Spiker. Upon inquiry, Barb Dorr, City Treasurer, explained the proposed substitute includes adjustments to the Board of Public Utilities (BOPU) areas, and also adjustments to correct certain expenditures that were paid from the FY2012 budget that should have been reflected as being paid from the FY2011 budget, which affected some carry-over amounts. Upon inquiry concerning the current status of revenue projections, Randy Hays, BOPU, stated that anticipated revenues are approximately \$400,000.00 below budget for the water fund and approximately \$100,000.00 below budget for the sewer fund. He explained they monitor the revenue monthly and if projections are less than anticipated they may have to delay some scheduled projects, but that no specific projects have been identified to date. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended carried. Voting "yes" -- all members of the governing body present. (#5319)

[CA] Resolution authorizing the Mayor and City Clerk to execute a Wyoming Cultural Trust Fund Grant Agreement for restoration of the cemetery vault at Lakeview Cemetery. Motion (per Consent Agenda) carried. (#5320)

[CA] Resolution authorizing the construction of certain infrastructure improvements at Powers Field, and supporting future efforts to obtain grant funding, private donations, and other public funding to construct future infrastructure improvements at the Powers Field Complex. Motion (per Consent Agenda) carried. (#5321)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Saddle Ridge, Third Filing, a replat of Lots 2-5, Block 2, Saddle Ridge Subdivision, Cheyenne, Wyoming (located at the northeast corner at the curve of Gunsmoke Road and Countryside Avenue, east of Saddle Ridge Trail) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for the property described as a parcel of land being situated at 5618 Townsend Place and described as the north 170 feet of Tract 6, Briney Tracts, Laramie County, Wyoming (generally located at the southwest corner of Townsend Place and east Carlson Street) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] County Preliminary Plat for Swan Ranch Rail Park, 5th Filing, portions of Sections 10, 11, 14, 15, 16, 21, 22, 23, 27, and 28, all in T.13N., R.67W., 6th P.M., Laramie County, Wyoming (located west of I-25, between Otto Road and High Plains interchange) -- referred to Public Services Committee.

[CA] Cooperative Agreement between the City of Cheyenne, Laramie County, Wyoming, and United Way of Laramie County, to create a Human Services Advisory Council to coordinate and refine Human Services funding and delivery systems (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Agreements between the City of Cheyenne and the following community Human Services Agencies: Cheyenne Housing Authority and Peak Wellness Center, Inc., Alcohol Receiving Center -- referred to Finance Committee. (City Clerk clerical correction note: Agreements do not involve 2011-2014 1% Sales Tax funds as indicated on agenda.)

[CA] Agreements between the City of Cheyenne and the following community Human Services Agencies: American Red Cross; Boys and Girls Club of Cheyenne, Wyoming, Inc.; CASA of Laramie County; Cheyenne Health and Wellness Center (Dental Access, Unified Human Service Eligibility and Cheyenne Area Centralized Pharmacy); Climb Wyoming; Comea, Inc.; Connections Corner; Family Promise; Green Path; Meals on Wheels of Cheyenne, Inc.; Needs, Inc.; Peak Wellness Center, Inc.; Safe Harbor, A Children's Justice Center; Safehouse Services, Inc.; Special Friends of Cheyenne; Southeast Wyoming Foster Grandparent Program (Helping Youth and Helping Community); Southern Wyoming Retired and Senior Volunteer Program; Wyoming 2-1-1, Inc.; Wyoming Family Home Ownership and Wyoming Senior Citizens, Inc. (2011-2014 1% Sales Tax) -- referred to Finance Committee.

Agreement between the City of Cheyenne and Academy Sports Turf, LLC, Englewood, CO, for infield renovations at Pioneer Park baseball field (State Loan and Investment Board funds) -- referred to Finance Committee. Mr. Valdez advised the item was discussed under other items for the agenda at the Finance Committee and provisions of Title 2, City Code, had been met. Mr. Valdez moved to approve in an amount not to exceed \$229,500.00, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body present. (#5740)

[CA] Lease Agreement between the City of Cheyenne and the Cheyenne Downtown Development Authority for parking spaces in the downtown parking garage -- referred to Finance Committee.

[CA] Cooperative Agreement between the City of Cheyenne and the State of Wyoming, Department of Environmental Quality, to purchase a 2010 EPA emissions compliant landfill grader for the City of Cheyenne landfill (Solid Waste Management fund) -- referred to Finance Committee.

Amendment No. Five to the Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation for the transfer of WYDOT's Federal Aid funding from the West Pershing Boulevard Project fund to the East Pershing Boulevard Project fund. Mayor Kaysen announced it was his understanding that staff has requested the item be withdrawn from the agenda. Upon inquiry, Doug Vetter, City Engineer, advised the request to withdraw the item is to correct some clerical deficiencies and that staff is working with WYDOT concerning some updates. There being no objection raised by City Council members, Mayor Kaysen announced the item was being withdrawn from the agenda.

[CA] Amendment No. 4 to Contract No. 4563 between the City of Cheyenne and William A. Gross, Managing Partner, Wyoming Cattle Co., LLC, for grazing lease on the Belvoir Ranch -- referred to Finance Committee.

[CA] Consideration of Bid #R-11-12 for the surplus sale of one complete Laser Tag System at the City of Cheyenne, Parks & Recreation Department, City-owned Ice and Events Center. Motion (per

Consent Agenda) carried (accept bid from Jan Bloom, Cheyenne, revenue to the City \$250.00).

[CA] Consideration of Bid #R-5-12 for furnishing one new 2011-2012 15 yd. hook-lift truck with a tarping system for the Sanitation Division (Solid Waste Management fund). Motion (per Consent Agenda) carried (accept bid from Peterbilt of Wyoming, amount not to exceed \$111,227.00).

[CA] Consideration of Bid #R-6-12 for furnishing one new 2011-2012 patch truck for the Street & Alley Division (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Peterbilt of Wyoming, amount not to exceed \$200,875.00).

Consideration of Bid #R-8-12 for furnishing one new 2011-2012 articulating overcenter aerial device for the Forestry Division (2011-2014 1% Sales Tax and General fund). Todd Feezer, Asst. Parks and Recreation Director, advised this will be a lease/purchase option with Peterbilt of Wyoming and requested a 2 week postponement to work through some concerns regarding language in the lease/purchase document. Mr. Valdez moved to accept the bid from Peterbilt of Wyoming for a lease/purchase option in an amount not to exceed \$190,546.56, seconded by Mr. Spiker. Mr. Valdez moved to postpone for two weeks (to Oct. 24, 2011), seconded by Mr. Collins. Motion to postpone carried. Voting "yes" -- all members of the governing body present.

[CA] Consideration of Bid #R-2-12 for the sale of surplus property described as All of Lots 9, 10 and 11, Block 666, South Cheyenne Addition, located within Section 5, T.13N. R.66W., 6th P.M., Laramie County, Wyoming (a/k/a 515 Morrie Avenue) -- referred to Finance Committee. (City Clerk clerical note: Correct legal description is " ... described as the south 66 ft. of Lots 9, 10 and 11, Block 666, South Cheyenne Addition ...")

[CA] Consideration of Bid #R-3-12 for the sale of surplus property described as All of Lots 19 and 20, Block 665, South Cheyenne Addition, located within Section 5, T.13N. R.66W., 6th P.M., Laramie County, Wyoming (a/k/a 916 E. 5th Street) -- referred to Finance Committee.

[CA] Consideration of Bid #R-4-12 for the sale of surplus property described as All of Lots 21 and 22, Block 665, South Cheyenne Addition, located within Section 5, T.13N. R.66W., 6th P.M., Laramie County, Wyoming (a/k/a 922 E. 5th Street) -- referred to Finance Committee.

Transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Concord Neighborhood Corporation d/b/a Applebee's Neighborhood Grill and Bar, 1401 Dell Range Blvd., Cheyenne, Wyoming (License currently held by Wild West Apple Ventures Ltd., LLC d/b/a Applebee's Neighborhood Grill and Bar, 1401 Dell Range Blvd., Cheyenne, Wyoming). Mr. Valdez moved to approve, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body present.

Under other business:

James Perrott Macneil commented in opposition to the City's actions involving annexation, development and/or activities involving the Belvoir Ranch and other properties he alleged that he owns.

Ms. Broyles stated that at the September 26th City Council meeting, the motion to adopt the

resolution involving condemnation proceedings to obtain property located at 1900 Converse Ave. for the East Pershing Boulevard Reconstruction Project failed and, as she had voted on the prevailing side, moved to reconsider the vote on the resolution, seconded by Mr. Collins. Upon request, Carol Intlekofer, City Clerk, read the resolution entitlement as follows: Resolution authorizing the City of Cheyenne, through the City Attorney's Office, to commence condemnation proceedings to obtain real property located at 1900 Converse Avenue necessary for the completion of the East Pershing Boulevard Reconstruction Project (Phase 4) (2003-2006, 2007-2010 1% Sales Tax). Ms. Broyles explained that subsequent to the September 26th meeting, additional information affiliated with the resolution had been received, and based upon this updated information she was requesting support for the motion to reconsider to allow for further discussion. John Patton, Patton and Davison law firm, representing the owner of the private property involved in the proposed resolution, advised that attorney Alex Davison, who has been involved in this matter with the City on behalf of the property owner, was unable to be in attendance and that he was instead present to represent their client. Mr. Patton, noting they were not opposed to the round-about project itself, spoke in opposition to the motion to reconsider and expressed concerns that approval of the resolution would result in a "fixed course" with only one option left; that being the taking of the sliver of land the City wishes to acquire without addressing the resulting impact effects involving the remaining property area the City does not wish to acquire. His comments included concerns regarding the potential limited use of the remaining property due to zoning and development requirements; access, reduced parking and ground contamination issues, and inability of the property owner to rent/lease the property at the current time. He indicated it was their desire to resolve the matter without the use of the resolution, which may result in litigation. Upon inquiry regarding whether the City could move forward with negotiations if the resolution were passed, Dan White, City Attorney, stated that his basic understanding of eminent domain law is that if the resolution was passed the City would have the right to file a complaint to take 10,000 sq. ft. of property (for the reconstruction project) and could move for a right of entry hearing, which could enable the City to take possession of the property and begin construction before final resolution of the amount that the City would owe the property owner. Mr. White added that, in his view, passage of the resolution would not preclude City staff from continuing negotiations with the attorneys and property owner, noting discussions could potentially involve the full range of issues that may need to be discussed to, hopefully, arrive at some agreement. Mr. Patton responded that they wish to seek the City Council's perspective, noting that City staff's position would probably not change. Comment followed on land contamination and potential ADA issues involving the property the City does not require for the project. Motion to reconsider carried. Voting "yes" -- Mr. Allen, Ms. Broyles, Mr. Collins, Dr. Rinne and Mayor Kaysen. Voting "no" -- Ms. Ash, Mr. Spiker and Mr. Valdez. Ms. Broyles moved to adopt the resolution, seconded by Mr. Collins. Mr. Patton reiterated, referencing his previous comments, his opposition to the resolution. James Perrott Macneil spoke against the eminent domain proceedings and stated, in his opinion, the City should buy the property from Mr. Cole and tear down the building. Mayor Kaysen clarified that the property involved in the resolution was not owned by Mr. Cole. Comment of concern was expressed regarding reconsideration of the resolution without the public's awareness, and allowing Mr. Davison the opportunity to be present prior to taking a vote. Mr. Spiker moved to postpone for two weeks (to Oct. 24, 2011), seconded by Mr. Allen. Comments in support of postponement followed. Motion to postpone carried. Voting "yes" -- all members of the governing body present. Mayor Kaysen announced the item would be reviewed at the next Finance Committee meeting on Oct. 17, 2011.

Ms. Ash commented on federal ARRA (American Recovery and Reinvestment Act) funding

and inquired whether, due to the federal Tydings amendment, any previous ARRA funds that may have been received by WYDOT could be used for the Pershing projects. Doug Vetter, City Engineer, advised he was not aware of any additional WYDOT funding that may be available under the ARRA. He explained the two projects (East and West Pershing projects) involve STP (Surface Transportation Program) urban funding and stated his belief that the STP amount to be received is a fixed amount at this point. Mayor Kaysen advised staff will follow-up with WYDOT to inquire whether any ARRA federal funding might be available.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:00 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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